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General Comment

I work in Big Tech as a software engineer and have spearheaded efforts to build AI products and features, as well as test for potential abusive use of generative AI (text and image generation)

The following is my personal opinion, separate from those of my employer.

In my personal time I am greatly involved in volunteering translation work from Japanese into English of various media, be it snippets of text, web comics, audio and live broadcasts, etc. I write this not only for me and the work that I've done, but also for the artists and other hobby creators I frequently interact with in my free time.

Generative AI has consistently been seen as a threat by artists and creators alike ever since its rise at the end of 2022. You can see this in the backlash Adobe Inc. received when the company hinted at changing their Terms of Use for their products (Photoshop, etc.), as well as some artists' migration away from X (formerly Twitter)

when the company assumed similar rights over the creative work posted by their users.

People clearly value in their work even if they seem to post it free for all to view on the Internet. I've observed that just because a work is free to view doesn't necessarily mean the creator permits attribution-free, royalty-free use of their work. For example, on the artwork sharing website "Pixiv" (similar to DeviantArt), artwork is generally free to view and download, but some are specially categorized by tags such as "フリー素材" (Japanese for 'free material') to clearly tell users what artwork can be used as free material. I've also seen this pattern applied for other intellectual property such as music and sound effects. Some users will write clearly that their work can be used as free material, whereas the vast majority do not.

Negative opinion from artists over generative AI makes it hard to use for serious commercial work. Enterprises caught using it are accused of being lazy or too miserly to invest in creative staff, and movements are made to shame & boycott such enterprises, hurting business.

There won't be a confident market for AI products as long as this negative opinion persists, which I believe will be the case until we can clearly prove if copyrighted works were used as model training data and fairly compensate creators for that data.

Good AI policy should improve transparency into what data AI models were trained with, to better dispel rumors they were made with copyrighted data.

I am aware there is a sense of urgency and geopolitical interest to be the leader in AI technology, but I believe the United States and allies like Japan derive great power and cultural influence from their creative industries, and we should not sacrifice the creative industry to promote the development of AI products.

It should be possible to build strong AI alongside a strong creative industry, perhaps future AI algorithms might not even need the vast amounts of training data as today's models require. Our creative industries, like our manufacturing and shipbuilding industries, are like a muscle. If people lose jobs or no longer work in that area, we lose that muscle and may find it hard to build it back. That would mean less content to train with in the long-term.

On the Internet today we have many well-known for-profit services that depend on and compensate a network of creators to maintain service, it shouldn't be too different for AI products.

Youtube compensates channels and creators for contributing highly-viewed content.

Ebay and Amazon compensates sellers for selling their products on their marketplace.

I hope this writing is useful in guiding AI policy in this and future administrations.

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